

Ashok Maurya v. Chairman, Purvanchal Vidyut Vitran Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 August 2022 · Writ-C No. 20410 of 2022 · WRIT - C No. - 20410 of 2022 · **Writ disposed; liberty to file Para 6.8 objection; coercive action stayed.**

HEADNOTE

A challenge to a provisional assessment demanding Rs. 11,05,896 was disposed of without examining merits. The consumer was given liberty to object under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the assessing officer was to decide any such objection in accordance with law after hearing within the next four weeks, and coercive recovery was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Ashok Maurya invoked the Allahabad High Court's writ jurisdiction against a provisional assessment order dated 15 March 2022 of the Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Khalilabad (Sant Kabir Nagar). The order required him to deposit Rs. 11,05,896 within fifteen days. He sought certiorari quashing that demand and a mandamus directing a fresh assessment after full opportunity of hearing under Section 126(3), (5) and (6) of the Electricity Act, 2003.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a provisional assessment of Rs. 11,05,896 is disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if submitted, the assessing officer shall decide it in accordance with law within the next four weeks after affording reasonable opportunity of hearing, and no coercive action shall be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 3-4

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court declined to quash the provisional assessment on merits and relegated the consumer to the statutory objection under Para 6.8 of the Supply Code. ¶ 3

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Any Para 6.8 objection filed within four weeks was directed to be decided in accordance with law after hearing within the next four weeks, with coercive action stayed for eight weeks or until disposal, whichever earlier. The order cited Para 6.8 generally, not clause 6.8(b)(i) by number. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 15.03.2022 AND THE PRAYER FOR A FRESH ASSESSMENT UNDER SECTION 126(3), (5) AND (6) OF THE ELECTRICITY ACT, 2003

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 3

